



General Assembly

February Session, 2026

Raised Bill No. 228

LCO No. 1406



Referred to Committee on GENERAL LAW

Introduced by:
(GL)

AN ACT CONCERNING LIQUOR PERMITS AND TOBACCO BARS.

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Subsection (k) of section 30-22a of the 2026 supplement to
2 the general statutes is repealed and the following is substituted in lieu
3 thereof (*Effective October 1, 2026*):

4 (k) For purposes of compliance with this section, "cafe" includes a
5 tobacco bar that: (1) During the calendar year ending December 31, 2002,
6 generated at least ten per cent of the tobacco bar's total annual gross
7 income from on-site sales of tobacco products and rentals of on-site
8 humidors; or (2) [commenced] commences operations [during the
9 period beginning] on or after January 1, 2003, [and ending December 31,
10 2022,] and (A) generates at least sixty per cent of the tobacco bar's total
11 annual gross sales from on-site sales of tobacco products, as defined in
12 subparagraph (E) of subdivision (2) of subsection (b) of section 19a-342,
13 as amended by this act, and subparagraph (F) of subdivision (2) of
14 subsection (b) of section 19a-342a, as amended by this act, as determined
15 in an annual audit conducted by an independent certified public
16 accountant, (B) is located in a municipality that has a population of at

17 least [eighty] forty thousand and does not contain another tobacco bar,
 18 (C) does not allow cigarettes or cigarette tobacco on the premises, (D)
 19 contains a walk-in or stand-up humidor as a built-in feature on the
 20 premises, (E) is located in a building (i) in which no other owner-
 21 occupant, lessee or tenant has a right to utilize the same space as the
 22 tobacco bar, or (ii) that uses the tobacco bar's own heating, ventilation
 23 or air conditioning system to prevent commingling of air, (F) is located
 24 in premises equipped with a ventilation system that (i) provides local
 25 mechanical exhaust with no recirculation, (ii) circulates at least sixty
 26 cubic feet of outdoor air per person per minute to provide adequate
 27 indoor air quality, and (iii) satisfies the requirements established in
 28 ANSI/ASHRAE 62-2001, "ventilation for acceptable indoor air quality",
 29 as amended from time to time, and (G) provides health coverage to the
 30 tobacco bar's employees and their dependents in accordance with other
 31 applicable law, including, but not limited to, the Patient Protection and
 32 Affordable Care Act, P.L. 111-148, as amended by the Health Care and
 33 Education Reconciliation Act, P.L. 111-152, as both may be amended
 34 from time to time, and regulations adopted thereunder.

35 Sec. 2. Subsection (b) of section 19a-342 of the general statutes is
 36 repealed and the following is substituted in lieu thereof (*Effective October*
 37 *1, 2026*):

38 (b) (1) Notwithstanding the provisions of section 31-40q, no person
 39 shall smoke: (A) In any area of a building or portion of a building,
 40 owned and operated or leased and operated by the state or any political
 41 subdivision of the state; (B) in any area of a health care institution,
 42 including, but not limited to, a psychiatric facility; (C) in any area of a
 43 retail establishment accessed by the general public; (D) in any
 44 restaurant; (E) in any area of an establishment with a permit issued for
 45 the sale of alcoholic liquor pursuant to section 30-20a, 30-21, 30-21b, 30-
 46 22, 30-22c, 30-22g, 30-28, 30-28a, 30-33a, 30-33b, 30-35a, 30-37a, 30-37e or
 47 30-37f, in any area of an establishment with a permit for the sale of
 48 alcoholic liquor pursuant to section 30-22aa issued after May 1, 2003,
 49 and, on and after April 1, 2004, in any area of an establishment with a

50 permit issued for the sale of alcoholic liquor pursuant to section 30-22a,
 51 as amended by this act, or 30-26; (F) in any area of a school building or
 52 on the grounds of such school; (G) within a child care facility or on the
 53 grounds of such child care facility, except, if the child care facility is a
 54 family child care home, as defined in section 19a-77, such smoking is
 55 prohibited only when a child enrolled in such home is present during
 56 customary business hours; (H) in any passenger elevator; (I) in any area
 57 of a dormitory in any public or private institution of higher education;
 58 (J) in any area of a facility equipped with screens for the simulcasting of
 59 off-track betting race programs or jai alai games; (K) in any room offered
 60 as an accommodation to guests by the operator of a hotel, motel or
 61 similar lodging; (L) in any area of a correctional facility or halfway
 62 house; or (M) in any area of a platform or a shelter at a rail, busway or
 63 bus station, owned and operated or leased and operated by the state or
 64 any political subdivision of the state. For purposes of this subsection,
 65 "restaurant" means space, in a suitable and permanent building, kept,
 66 used, maintained, advertised and held out to the public to be a place
 67 where meals are regularly served to the public, "school" has the same
 68 meaning as provided in section 10-154a and "child care facility" has the
 69 same meaning as provided in section 19a-342a, as amended by this act.

70 (2) Subdivision (1) of this subsection shall not apply to the following:
 71 (A) Public housing projects, as defined in subsection (b) of section 21a-
 72 278a; (B) any classroom where demonstration smoking is taking place
 73 as part of a medical or scientific experiment or lesson; (C)
 74 notwithstanding the provisions of subparagraph (E) of subdivision (1)
 75 of this subsection, the outdoor portion of the premises of any permittee
 76 listed in subparagraph (E) of subdivision (1) of this subsection,
 77 provided, in the case of any seating area maintained for the service of
 78 food, at least seventy-five per cent of the outdoor seating capacity is an
 79 area in which smoking is prohibited and which is clearly designated
 80 with written signage as a nonsmoking area, except that any temporary
 81 seating area established for special events and not used on a regular
 82 basis shall not be subject to the smoking prohibition or signage

83 requirements of this subparagraph; (D) any medical research site where
 84 smoking is integral to the research being conducted; or (E) any tobacco
 85 bar. For purposes of this subdivision, "outdoor" means an area which
 86 has no roof or other ceiling enclosure; "tobacco bar" means an
 87 establishment with a permit for the sale of alcoholic liquor to consumers
 88 issued pursuant to section 30-22a, as amended by this act, that, in the
 89 calendar year ending December 31, 2002, generated ten per cent or more
 90 of its total annual gross income from the on-site sale of tobacco products
 91 and the rental of on-site humidors or, for any tobacco bar that
 92 [commenced] commences operations [during the period beginning] on
 93 or after January 1, 2003, [and ending December 31, 2022,] generates at
 94 least sixty per cent of the tobacco bar's total annual gross sales from on-
 95 site sales of tobacco products, as determined in an annual audit
 96 conducted by an independent certified public accountant; and "tobacco
 97 product" means cigars and pipe tobacco, and does not include cannabis,
 98 cigarettes or chewing tobacco.

99 Sec. 3. Subsection (b) of section 19a-342a of the general statutes is
 100 repealed and the following is substituted in lieu thereof (*Effective October*
 101 *1, 2026*):

102 (b) (1) No person shall use an electronic nicotine or cannabis delivery
 103 system or vapor product: (A) In any area of a building or portion of a
 104 building owned and operated or leased and operated by the state or any
 105 political subdivision of the state; (B) in any area of a health care
 106 institution, including, but not limited to, a psychiatric facility; (C) in any
 107 area of a retail establishment accessed by the public; (D) in any
 108 restaurant; (E) in any area of an establishment with a permit issued for
 109 the sale of alcoholic liquor pursuant to section 30-20a, 30-21, 30-21b, 30-
 110 22, 30-22a, as amended by this act, 30-22c, 30-22g, 30-26, 30-28, 30-28a,
 111 30-33a, 30-33b, 30-35a, 30-37a, 30-37e or 30-37f, in any area of
 112 establishment with a permit issued for the sale of alcoholic liquor
 113 pursuant to section 30-22aa issued after May 1, 2003; (F) in any area of a
 114 school building or on the grounds of such school; (G) within a child care
 115 facility or on the grounds of such child care facility, except, if the child

116 care facility is a family child care home as defined in section 19a-77, such
117 use is prohibited only when a child enrolled in such home is present
118 during customary business hours; (H) in any passenger elevator; (I) in
119 any area of a dormitory in any public or private institution of higher
120 education; (J) in any area of a facility equipped with screens for the
121 simulcasting of off-track betting race programs or jai alai games; (K) in
122 any room offered as an accommodation to guests by the operator of a
123 hotel, motel or similar lodging; (L) in any area of a correctional facility,
124 halfway house or residential facility funded by the Judicial Branch; or
125 (M) in any area of a platform or a shelter at a rail, busway or bus station,
126 owned and operated or leased and operated by the state or any political
127 subdivision of the state. For purposes of this subsection, "restaurant"
128 means space, in a suitable and permanent building, kept, used,
129 maintained, advertised and held out to the public to be a place where
130 meals are regularly served to the public; and "school" has the same
131 meaning as provided in section 10-154a.

132 (2) Subdivision (1) of this subsection shall not apply to the following:
133 (A) Public housing projects, as defined in subsection (b) of section 21a-
134 278a; (B) any classroom where a demonstration of the use of an
135 electronic nicotine or cannabis delivery system or vapor product is
136 taking place as part of a medical or scientific experiment or lesson; (C)
137 any medical research site where the use of an electronic nicotine or
138 cannabis delivery system or vapor product is integral to the research
139 being conducted; (D) establishments without a permit for the sale of
140 alcoholic liquor that sell electronic nicotine delivery systems, vapor
141 products or liquid nicotine containers on-site and allow their customers
142 to use such systems, products or containers on-site; (E) notwithstanding
143 the provisions of subparagraph (E) of subdivision (1) of this subsection,
144 the outdoor portion of the premises of any permittee listed in
145 subparagraph (E) of subdivision (1) of this subsection, provided, in the
146 case of any seating area maintained for the service of food, at least
147 seventy-five per cent of the outdoor seating capacity is an area in which
148 smoking is prohibited and which is clearly designated with written

149 signage as a nonsmoking area, except that any temporary seating area
 150 established for special events and not used on a regular basis shall not
 151 be subject to the prohibition on the use of an electronic nicotine or
 152 cannabis delivery system or vapor product or the signage requirements
 153 of this subparagraph; or (F) any tobacco bar. For purposes of this
 154 subdivision, "outdoor" means an area which has no roof or other ceiling
 155 enclosure; "tobacco bar" means an establishment with a permit for the
 156 sale of alcoholic liquor to consumers issued pursuant to section 30-22a,
 157 as amended by this act, that, in the calendar year ending December 31,
 158 2002, generated ten per cent or more of its total annual gross income
 159 from the on-site sale of tobacco products and the rental of on-site
 160 humidors or, for any tobacco bar that [commenced] commences
 161 operations [during the period beginning] on or after January 1, 2003,
 162 [and ending December 31, 2022,] generates at least sixty per cent of the
 163 tobacco bar's total annual gross sales from on-site sales of tobacco
 164 products, as determined in an annual audit conducted by an
 165 independent certified public accountant; and "tobacco product" means
 166 cigars and pipe tobacco, and does not include cannabis, cigarettes or
 167 chewing tobacco.

This act shall take effect as follows and shall amend the following sections:

Section 1	<i>October 1, 2026</i>	30-22a(k)
Sec. 2	<i>October 1, 2026</i>	19a-342(b)
Sec. 3	<i>October 1, 2026</i>	19a-342a(b)

Statement of Purpose:

To authorize the Department of Consumer Protection to issue a cafe liquor permit to additional tobacco bars.

[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]